

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Muhammad Ali Mazhar
Mr. Justice Athar Minallah
Mr. Justice Salahuddin Panhwar

C.P.L.A.Nos.954-K, 955-K, 966-K, 1034-K to 1040-K/2025

(On appeal from the Judgment dated 29.04.2025 passed by the Sindh Service Tribunal at Karachi in Appeal No.1102, 1104 to 1112/2021)

Muhammad Azam	(In CP.954-K/25)
Mumtaz Ali	(In CP.955-K/25)
Mujahid Hussain	(In CP.966-K/25)
Zahoor Ahmed	(In CP.1034-K/25)
Muhammad Amin	(In CP.1035-K/25)
Riaz Ahmed	(In CP.1036-K/25)
Rahib Ali	(In CP.1037-K/25)
Nadir Ali	(In CP.1038-K/25)
Mukhtiar Ahmed	(In CP.1039-K/25)
Nazeer Ahmed	(In CP.1040-K/25)
	...Petitioner(s)

Versus

Province of Sindh through Secretary	(In all cases)
Home Dept. & others	..Respondent(s)

For the Petitioner(s) : M/s Muhammad Azam, Mumtaz Ali, Mujahid Hussain, Zahoor Ahmed, Riaz Ahmed, Nadir Ali and Nazeer Ahmed. (all in person)

For the Respondent(s) : Mr. Kafeel Ahmed Abbasi, Addl.A.G.
Mr. Mushtaq Abbasi Ali, AIG (Legal)
Mr. Abdul Ghaffar Lakho, SP (Inv)
Mr. Atta Muhammad Soomro, DSP(L)
Mr. Muhammad Ghaffar DSP (Legal)
Mr. Muhammad Amin Inspector.

Date of hearing : 03.09.2025

Judgment

Muhammad Ali Mazhar, J.:- The aforementioned Civil Petitions for leave to appeal are directed against the consolidated Judgment dated 29.04.2025 passed by the learned Sindh Service Tribunal (**SST**) at Karachi in Appeal No.1102, 1104 to 1112/2021, whereby the

withdrawal of alleged out of turn promotion by the police department was upheld and the appeals were dismissed.

2. According to the narrative of the petitioners, they were appointed as Police Constables (BPS-05) in the year 2002 to 2009. After passing the requisite course, they were entitled for promotion to the post of Head Constables (BPS-07) in line with Rule 13.6 (2) of the Police Rules, 1934. **(Rules, 1934)**. Accordingly, their names were included in the Promotion List of Head Constables, pursuant to Rule 13.9 of Rules, 1934 but after promotion, their names were removed from the list and they were reverted/demoted to the rank of Constable vide departmental orders dated 05.04.2016, 08.04.2016, 25.04.2016 and 13.08.2018. The petitioners filed their departmental appeals but the appeal/representation filed by Zahoor Ahmed, Muhammad Ameen, Riaz Ahmed and Rahib Ali were simply filed by the department without any action vide common order dated 08.09.2021 and rest of the departmental appeals remained undecided within the statutory period, hence, the petitioners invoked the jurisdiction of SST and filed their appeals which were dismissed by the consolidated impugned judgment.

3. The petitioners asserted that the SST misapplied the ratio of the judgments rendered by this Court in the case of Ali Azhar Khan Baloch and Others v. Province of Sindh and Others **(2015 SCMR 456)** and Contempt proceedings against Chief Secretary Sindh and Others **(2013 SCMR 1752)**, which only pertained to shoulder promotions made without legal basis or merit. It was further contended that all the petitioners were promoted in accordance with Rule 13.6 (2) of the Rules, 1934 and inclusion of their names in List-D was fully justified under the applicable rules on the basis of merits, hence the reversion/demotion orders without any allegation of misconduct or inquiry, violates the petitioners vested

rights. It was further averred that no opportunity was afforded to the petitioners before taking such a drastic action which is also sheer violation of Article 10-A of the Constitution of Islamic Republic of Pakistan 1973 (**Constitution**). It was further averred that the SST failed to appreciate that Rule 13.6 (2) of Rules, 1934 were effective at the relevant time and its subsequent repeal could not be applied retrospectively to nullify vested rights accrued to the petitioners hence the departmental action is also hit by the rigors of Articles 4 and 25 of the Constitution. They concluded that the SST adopted a mechanical approach and without examining the specific facts, qualifications, and record of service of the petitioners, it dismissed the service appeals.

4. Mr. Kafeel Ahmed Abbasi, learned Additional Advocate General, Sindh waived notice and argued that SST failed to consider and appreciate whether the petitioners were accorded out of turn promotion or shoulder promotion in violation of the dictum laid down by this Court in the cases of Ali Azhar Khan and Contempt proceedings against Chief Secretary Sindh (supra). He further argued that without proper consideration of facts and circumstances, the petitioners were nonsuited and their appeals were dismissed in a perfunctory approach without examining the key factor whether the petitioners were promoted on merits in accordance with relevant rules or not?

5. Heard the arguments. If we catch sight of the impugned judgment, it also reflects the crux of the comments filed by the Deputy Inspector Generals (DIGs) of Police, which divulged that all the petitioners are belonging to Larkana and Sukkur Ranges, who were appointed as Police Constables (BPS-05) in their

respective districts but after completing and passing training courses, they were promoted as Head Constables but due to the directives of Inspector General of Police (IGP) Sindh, the petitioners were reverted to the substantive ranks of Constable following the Order of this Court rendered in Suo Moto Case No.03/2012, wherein the out-of-turn promotions were deprecated. Similar views were expressed by the Additional Inspector General of Police, Karachi Range and concerned SSPs in their written statements. Notwithstanding the favorable comments/written statements, it is ground reality that the promotions accorded to the petitioners were withdrawn pursuant to the directions issued by IGP Sindh, Karachi, vide orders dated 02.03.2016, 06.03.2016 and 09.03.2016.

6. The learned SST referred to Sub-Rule (2) of Rule 13.6 of the Rules, 1934, which articulated that the constables showing outstanding merit in the lower school course examination, and ordinarily such promotion shall only be granted to the constables who gain first and second places in the order of merit, shall, subject to the recommendation of the principal, be promoted at the first opportunity to officiate as head constable, and be posted for six months as clerks at rural Police Stations under selected sub-inspectors. After qualifying as clerks and learning the use of Police Station registers each will be posted separately on investigation work in two different Police Stations for a period of six months. After the conclusion of the year's investigation duties they will, subject to satisfactory reports, be sent to the intermediate course. In tandem, the learned SST observed that the aforesaid sub-rule was no more available in the Rules 1934 but while making such observations, no concrete efforts were made by the SST to verify and substantially hold whether in the period

when the petitioners were awarded promotions, this rule was in field/vogue or not and if not then when it was repealed or omitted? Why such examination was necessary because, the petitioners vigorously asserted that the said rule was in force when they were granted promotion. Furthermore, neither omission nor repeal, if any, could be taken retrospectively or could reopen or disturb past and closed matters.

7. Without a doubt, this Court in *Suo Moto Case No.03 of 2012*, held that no shoulder or out of turn promotion should be allowed and also called upon the Inspectors General of Police and the Chief Secretaries of the Provinces to immediately take action and all those police officers/officials to whom shoulder promotions have been given shall be demoted in their original ranks. Likewise, in the Contempt proceedings against Chief Secretary Sindh (*supra*), while supporting the objective of boosting the morale of the police personnel and in order to confer award or reward on the police officer for his act of gallantry, the Sindh Government was called upon to constitute a committee to evaluate the performance of the police officer upon whom the proposed award or reward has to be bestowed. It was further held that out of turn promotion in police force would not boost the morale of the police force. Out of turn promotions have engendered inequalities and rancor among the batch mates, course mates and rendering junior/subordinate to their junior colleagues. Whereas in the judgment rendered by this Court in the Civil Review Petitions filed in case of *Ali Azhar Khan Baloch* (*supra*), it was reiterated that the Competent Authority can grant awards or rewards to the Police Officers, if they show act of gallantry beyond the call of duty. However, the concept of out of turn promotion was struck down as being violative of

Constitution for the reasons incorporated in paras' No. 158 to 164 of the judgment under review.

8. Right now, it is a de facto situation that the out of turn promotion or shoulder promotion was disapproved and condemned by this Court but it is also a practical reality or on the on-ground situation that before outrightly or abruptly declaring any promotion out of turn or depriving any person from promotion, was it not the responsibility of Court and Tribunal to first examine and fulfill elementary obligation whether on the basis of available service record it can be declared that the incumbent was accorded shoulder promotion or out of turn promotion without merit? Although, we can hold with full conviction that the judgment of this Court has the binding effect in terms of Article 189 of the Constitution, but each case has to be decided on its own peculiar facts and circumstances with an independent and judicious application of mind rather than simply relying on the departmental version as gospel truth. Here the learned SST in its fine sense of judgment ought to have taken into consideration whether the petitioners were promoted after fulfillment of all codal formalities which may include the training courses/examinations and whether the judgments of this Court referred to above are impeccably applicable in the set of circumstances pleaded in the service appeals or not? The promotion cases of present petitioners whether or not out of promotion could obviously be decided if the relevant service record of the petitioners was properly vetted by the SST, together with the question of alleged repeal or omission of Sub-Rule (2) of Rule 13.6 of the Rules, 1934 with its effective date vis-à-vis the date of alleged out of promotion granted to the petitioners.

9. In the case of Rao Muhammad Rashid & others versus Province of Sindh through Chief Secretary and Others (2024 SCMR 1864 = 2024 PLC (C.S) 1349), this Court held that the powers of the Tribunal are provided under Section 5 of the aforesaid Act, whereby the Tribunal may, on appeal, confirm, set aside, vary or modify the order appealed against and for the purpose of deciding any appeal. A conscientious examination of this provision would show that the only limitation on the power of the Tribunal is that it must ensure and meet the acid test of reasonableness and judiciousness. The astuteness of discretion in the judicial power is meant to serve and advance the cause of justice in a judicious manner, in aid of justice, rather than perpetuating injustice. While in the case of Secretary to Government of the Punjab Law and Parliamentary Affairs Department, Lahore versus Ali Ahmad Khan (2025 SCP 2 = 2025 SCMR 289= 2025 PLC (C.S) 549= 2025 SCLR 25), it was held that a meticulous and assiduous reading of the Service Tribunal Acts, both Federal and Provincial, unequivocally shows that the Service Tribunal is deemed to be a Civil Court with the same powers as those vested in the Code of Civil Procedure, 1908. The factual controversy was required to be resolved by the Tribunal, being an ultimate judicial fact-finding forum which has been constituted to exercise exclusive jurisdiction in respect of matters relating to the terms and conditions of service of civil servants and for the matters connected therewith or ancillary thereto. Being the first fact-finding forum as an appellate Tribunal, constituted under Article 212 of the Constitution of the Islamic Republic of Pakistan, 1973, it is the onerous duty and responsibility of all Service Tribunals in the country to thoughtfully examine the original and appellate orders passed by the departmental authorities imposing fines or punishments upon civil servants, with proper application of mind. It is a well-

settled exposition of law that an appeal is a continuation of the original proceedings, and in the appellate stage, the entire matter is reopened to determine whether the order or judgment appealed against is in accordance with the law or contains inherent defects that need to be rectified within the appellate jurisdiction of the Tribunal to attain finality. Therefore, in all fairness, while exercising the appellate jurisdiction under the provisions of the Service Tribunal Acts, the first and foremost duty is thoroughly examine all facts of the case and diligently address all factual and legal pleas raised by the parties.

10. In the wake of the aforesaid discussion, these Civil Petitions are converted into appeals and allowed. As a consequence thereof, the impugned consolidated judgment passed by the SST is set aside and the matter is remanded to the SST to decide all the service appeals afresh in accordance with law after providing ample opportunity of hearing to the parties, preferably within a period of three months after receipt of the copy of this judgment. The petitioners are also allowed to file all relevant documents relating to their qualification before the SST to demonstrate that they had qualified the requisite courses before promotion.

Judge

Judge

Judge

Karachi
03.09.2025
Khalid
Approved for reporting.

